

IN THE COMMON PLEAS COURT OF MIAMI COUNTY, OHIO
CIVIL DIVISION

THE OTHER WOMAN AND THE
WIFE, LLC
228 MONTEGO KY
NOVATO, CA 94949

Plaintiff

vs.

KRISTEN JACOBS
6230 Tipp Elizabeth Road
Troy, OH 45373

Defendant.

*
*
*
*
*
*

CASE NO.

24-498

JUDGE

JEANNINE R. PRATT, JUDGE

COMPLAINT FOR TORTIOUS
INTERFERENCE WITH
CONTRACT AND BUSINESS
RELATIONS; WITH JURY
DEMAND ENDORSED HEREON

Now comes the Plaintiff, by and through counsel, and hereby avers and states as follows
for its Complaint against the Defendant:

PARTIES, JURISDICTION AND VENUE

1. Plaintiff, The Other Woman and the Wife, LLC, is a California Limited Liability Corporation.
2. Defendant, Kristen Jacobs, is an individual and resident of Miami County, Ohio.
3. Plaintiff operates an on-line support community for women healing following an experience with infidelity.
4. Defendant, upon information and belief was the spouse of a partner who engaged in infidelity with a member of Plaintiff's online community.
5. Defendant, with an objective and intention of identifying and exposing the woman who had been involved with her partner joined Plaintiff's online subscription only community under false pretenses, and with false identification.

6. Defendant then, with full knowledge that the community was a subscription-based platform, sought to spew misinformation about the Plaintiff, its founder, and its objectives.

7. Additionally, Defendant also sought to uncover and expose members of the subscription only community, their children, and other family details, in a conscientious effort to interfere with the operations of the online community and to threaten and intimidate its members.

8. Defendant, in fact, was partly successful in these endeavors, as the Defendant's breach of the confidential members only online community required that the online community be taken down for a period of time, causing the Plaintiff to incur substantial loss of subscription-based revenue and having to issue refunds.

9. Ultimately, Defendant was able to be identified based upon the credit card information she had submitted when joining the online community under false pretenses.

10. Once the Defendant's identify was discovered, a cease-and-desist notice was sent to the Defendant, but she has failed and refused to respond to same.

FIRST CAUSE OF ACTION
(Tortious Interference with Contractual Relations)

11. Plaintiff hereby incorporates completely herein each of the allegations set forth above in ¶¶1–10 as if fully restated herein.

12. A contract exists by and between the Plaintiff and each of its online community members.

13. Defendant, who infiltrated Plaintiff's online members only community, was aware of the contract relationship and the fee-based membership.

14. Defendant, through her conscientious actions, intentionally sought to procure the breach of Plaintiff's online membership contracts by threatening, intimidating, and forcing other members to leave the community for fear of exposure of their identities, and/or personal safety.

15. Defendant lacked any justification and/or basis to procure these breaches.

16. As a direct and proximate result of the Defendant's actions, Plaintiff has suffered damages, the amount of which has not been presently determined, but will be more fully determined at trial.

SECOND CAUSE OF ACTION
(Tortious Interference with Business Relations)

17. Plaintiff hereby incorporates completely herein each of the allegations set forth above in ¶¶1–16 as if fully restated herein.

18. Plaintiff has an established business online community, and established relationships with multiple individual fee-paying members.

19. Defendant, who fraudulently joined Plaintiff's online support group, was fully aware of the membership agreement.

20. After joining Plaintiff's online community, Defendant intentionally took action to interfere with Plaintiff's business relationships with its members, and to procure breaches of existing membership agreements and members through her threats to expose, and through her efforts to intimidate, Plaintiff's members.

21. Defendant lacked any privilege or justification for her actions.

22. As a direct and proximate result of the Defendant's actions, Plaintiff has been damaged, in an amount not yet determined, but to be more fully proven at trial.

WHEREFORE, Plaintiff demands judgment in its favor and against the Defendant as follows:

- A. On Plaintiff's First Cause of Action, damages, in an amount yet to be determined, punitive damages for the Defendant's intentional acts;
- B. On Plaintiff's Second Cause of Action, damages, in an amount yet to be determined, punitive damages for the Defendant's intentional acts; and
- C. Interest, court costs, and Plaintiff's reasonable attorney's fees, as well as any other relief at law or equity this Court deems just and proper.

Respectfully submitted,

/s/ Michael W. Sandner

Michael W. Sandner (0064107)
PICKREL, SCHAEFFER & EBELING CO.
2700 Stratacache Tower
Dayton, Ohio 45423
Phone: (937) 223-1130 / Fax: (937) 223-0339
E-mail: msandner@pselaw.com
Attorney for Plaintiff

JURY DEMAND

Plaintiff hereby demands a trial by jury as to all issues raised herein.

/s/ Michael W. Sandner

Michael W. Sandner (0064107)
PICKREL, SCHAEFFER & EBELING Co., LPA